guilt. However, we think the evidence was sufficient to go to the jury and that the judgment and sentence upon the verdict of the jury that the appellant was guilty as charged must be sustained. That judgment is

Affirmed.

**UNITED STATES of America, Appellee,**

**v.**

**Nicholas FORLANO, Appellant.**

**No. 195, Docket 29645.**

United States Court of Appeals
Second Circuit.

Argued Jan. 13, 1966.

Decided Feb. 7, 1966.

Lawrence W. Newman, Asst. U. S. Atty., New York City (Robert M. Morgenthau, U. S. Atty. for Southern District of New York, and James M. Brachman, Asst. U. S. Atty., New York City, on the brief), for appellee.

H. Elliot Wales, New York City (Abraham H. Brodsky, New York City, on the brief), for appellant.

Before LUMBARD, Chief Judge, and MEDINA and KAUFMAN, Circuit Judges.

PER CURIAM.

On a previous appeal we reversed and remanded for a further hearing and findings. United States v. Forlano, 2 Cir., 1963, 319 F.2d 617. On the remand there was an exhaustive evidentiary hearing at which every relevant phase of the case was fully explored and new findings made. We affirm on Judge Wyatt's opinion below, reported at D.C., 249 F. Supp. 174.

Affirmed.

**REYNOLDS METALS COMPANY, Appellant,**

**v.**

**William H. STONE, Appellee.**

**No. 22466.**

United States Court of Appeals
Fifth Circuit.

Feb. 17, 1966.

Lewright, Dyer & Redford, Corpus Christi, Tex., James McCollum Burnett, Corpus Christi, Tex., of counsel, for appellant.

William R. Edwards, James De Anda, Corpus Christi, Tex., for appellee.

Before TUTTLE, Chief Judge, and JONES and WATERMAN,* Circuit Judges.

PER CURIAM.

In this case, where Federal jurisdiction is dependent solely upon diversity, we find ourselves in agreement with the result reached by the district court. Stone v. Reynolds Metal Company, D.C.S.D. Texas, 1964, 233 F.Supp. 440. The judgment of the district court is

Affirmed.

* Of the Second Circuit, sitting by designation.